Pressure builds for EU to revive spiked patents rulebook

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Pressure builds for EU to revive spiked patents rulebook
By Mathieu Pollet, Jasper Bennink · Nov 3, 2026, 3:13 PM · View in your browser

The European Commission is facing fresh calls to revive the tech patent licensing reform it dropped two years ago, according to three separate letters seen by POLITICO.

Germany is leading an effort to press the EU executive to present a new proposal that would revisit how companies negotiate so-called standard essential patents — such as 4G and 5G patents used in mobile phones and connected cars.

In early 2025, after a heavyweight lobbying battle, the Commission moved to withdraw a draft regulation that sought to curb lengthy intellectual-property litigation. The proposal had pitted patent holders such as Nokia, Ericsson and Qualcomm against companies that license their technology, including tech manufacturers such as Apple and Microsoft, as well as carmakers.

The move triggered a turf war with the European Parliament, which unsuccessfully fought the withdrawal and eventually sued the Commission over it.

EU capitals were split at the time , but efforts to revive the issue are gaining momentum, empowered by the Commission’s pledge to keep monitoring whether patent legislation is necessary and revisit its position if needed.

In a letter dated Sept. 22, seen by POLITICO, the German ministries for justice and economic affairs jointly called on the Commission to “resume work on the SEP issue so that it can lead as soon as possible to a new proposal capable of commanding a majority,” saying it “greatly regretted” the “unexpected” announcement to withdraw the original proposal in 2025.

Berlin is now trying to rally other countries behind the effort, according to three EU officials, granted anonymity to discuss the matter.

A draft joint letter, also seen by POLITICO and steered by Germany, calls for continuing “the legislative process with the co-legislators to develop a balanced regulatory framework for the licensing of SEP that can be widely accepted by both licensees and licensors while minimizing further bureaucracy and additional costs.”

Officials from Germany and the Commission didn’t respond to a request for comment.

As the Commission prepares to present its 2027 work program on Wednesday, including a list of new proposals and initiatives it plans to drop, the audiovisual industry is also warning about a gap in patent legislation.

In a separate letter dated Nov. 3, shared with POLITICO and sent to the Commission's industry chief, Stéphane Séjourné, streaming platforms and broadcasters warned of the "abuse of standard essential patents." They say patents covering widely used video-coding technologies should be licensed on "Fair, Reasonable and Non-Discriminatory" (FRAND) terms to curb what they describe as excessive and detrimental licensing demands.

"Patentholders benefit enormously when their patents cover the technical features of these standards, since inclusion in the standard greatly enhances the patent's market power by forcing every potential competitor to obtain a license for their technology," argues the letter, which was signed by trade groups including the Motion Picture Association and ACT.

Technology Competition and Industrial Policy Mobility
5G Audiovisual Cars Companies Connected cars Industry Intellectual property Level playing field Markets Mobile Negotiations Patents Regulation Technology Trade Stéphane Séjourné Apple European Commission European Parliament Microsoft Germany

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Pro Intelligence Connections
2023/0133(COD) Standard essential patents
Withdrawal by Commission

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